

Amendment No. 1 to HB2349

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2647*

House Bill No. 2349

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 5, is amended by adding the following as a new section:

(a) On or before July 1, 2027, the department shall create a secure, user-intuitive, easily accessible, web-based system, through which members of the public may obtain the following information:

(1) A list of all licensed or approved child care agencies, searchable by zip code;

(2) The current status of a child care agency's license or approval;

(3) Information concerning any adverse licensing action taken against a licensed or approved child care agency, including:

(A) The identity of the child care agency;

(B) The date of the adverse licensing action; and

(C) The type of adverse licensing action;

(4) Information concerning child care agency inspections including:

(A) The date of the provider's most recent inspection; and

(B) The results of each inspection, including any requested corrective action; and

(5) Other relevant information.

(b) The system described in subsection (a) must not contain the address of a private family boarding home or foster home or information identifying an individual child

or foster parent. However, the system may include the county and zip code in which such home is located.

(c) The department shall post, in a timely manner, full monitoring and inspection reports, either in plain language or with a plain language summary. Such results must include:

(1) Any health and safety violations;

(2) Information on corrective action requested by the state, where applicable; and

(3) A minimum of three (3) years of results, where available.

(d) The department shall collect and disseminate the following information to the general public and providers through a user-intuitive, easily accessible website:

(1) Department processes, including:

(A) The process for licensing child care agencies; and

(B) The process for conducting monitoring and inspections of child care agencies;

(2) Policies and procedures related to criminal background checks for child care agencies;

(3) The offenses that prevent individuals from serving as child care agencies; and

(4) Directions on how the general public can contact the department and other programs to help them understand the information on the website.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.